

by the Statute of this Realm alreadye in force ys provided, under the paynes in the same Statutes contayned, and before the same be could or offered to be sold, shall sett his Seale of Lead unto every of the same Clothe Keruies Douens Cottons Penytones Kighley Whites Fries, or by what name or names soever yt or they be called; in which said Seale of Lead shalbe contayned the true and just Length, and the true and juste Weight as the launce, of every such Keruie Douens Cotton Penytone Playne Grayes Kighley Whites Fries or by what name or names soever yt or they shalbe called, as yt shalbe dulye founde by due prooffe thereof to be tried by water or weight; upon payne to forfeit every Clothe Douens Cotton Keruie Penytone Playne Grayes Kighley Whites Fries, or other Clothe by what name or names soever yt or they be called, which shalbe made within any the Countyes aforesaid, wherunto such Seale as ys aforesaid shall not be putt and sett: And in case, upon prooffe to be made by water or weight of any such Clothe Keruies Douens Cottons Penytone Playne Grayes Kighley Whites Fries or any other Clothe as ys aforesaid, shalbe found of lesse waight or of smaller content in Length then ys conteyned or specified in any of these said Seales, that the owner of every suche Clothe Keruies Douens Cottons Penytone Playne Grayes Kighley Whites and Fries, or any other Clothe by what Name or Names soever they be called as aforesaid, or any other person or persons in whose hande or possession any suche Clothe Keruies Douens Cottons Penytone Playne Grayes Kighley Whites Fries, or any other Clothe by what Name or Names soever they be called, shall be founde, shall forfeite for every Yard wantinge in Length Foure Shillinge; and for every Pounce wantinge in waighte twoe Shillinge.

Each Clothe shall be made of the Length and Weight required by Law, and sealed by the Holder.

Forfeite as before in Length or Weight.

And for the better and more speedye and effectuall reforminge of all such abuses as ys aforesaid; Be yt further enacted, That in every Parishes Towne Village and Hamlett within the Countie Keruies Douens Cottons Penytone Playne Grayes Kighley Whites Fries, or any other Clothe by what Name or Names soever they be called, shall be made or sold, the Justices of Peace of the same Shire or Ridinge, or twoe of them at the least, and in every Citye Borough or Towne Corporate, the Head Officer or Officers of every of the same Citye Borough or Towne Corporate, together with some one or twoe of the Justices of the Peace of the Shire or Ridinge next adjoyning to such Citye Borough or Towne Corporate, shall have full power and authoritie, and shall by vertue of this Acte once every yere at the least, and as often as they shall thinke good, to convene and call before them their Precept or otherwise, twoe foure sixe or eighte, or more as they shall thinke good by their discretion, of the most honest discreet and able Men of every suche Citye Towne Village Hamlett or Parishes where any Clothe shall be made or sold, and then shall constitute ordaine and appointe to be Overseers for one whole Yere or Sixe Moneths, or shorter tyme at their discretions, then next followinge, within the Citye Borough Towne Village Hamlett or Parishes where the same Overseers shall be dwellinge; and shall and maye take them sworne and bounde in Recognizance of Forfeite Pounde a peice to the use of your moste excellent Majestye and your Successors, to doe their best endeavor by all lawfull Waies and Meanes for their tyme to see that this Statute in all poynts shalbe trulye observed and kepte within the limitte of their Charge in every parte thereof: And that the same Overseers, or twoe of them, shall once every Moneth at the least, or as often as need shall require, or they shall thinke fit by their discretions, by force hereof, visite and goe into all or any House or Houses Shopp or other Roomes of any Clothiers Drapers Clothworker, or of any other person or persons whosoever where any of the said Clothe shalbe, and theire to make due searche and view the same, made or remayning to be sold, and to take searche and trye as well by Weight Water or any other Waye whatsoever the said Clothe Keruies Douens Cottons Penytone Kighley Whites and Fries, or any other Clothe by what Name or Names they be called; And yf any Clothe aforesaid, upon Search thereof shall not be found to be sealed with a Seale, contayninge the Lengthe and Weight as aforesaid, then the Clothier and every Owner of the said Clothe shall forfeit every suche Clothe Keruies Douens Cottons Penytone Kighley Whites and Fries, or any other Clothe by what Name or Names soever they be called, made within the Countie aforesaid, not so sealed, and sold or offered to be sold, and the said Overseers and every of them shall and maye seize and carrie awaye the same so forfeited as aforesaid, and putt the same to the Justice of the Peace at the next Quarter Sessions, to be by them disposed of as hereafter in this Statute limited and appointed: And yf the said Overseers shall fynde any false Seale or Marke to be sett upon any Clothe aforesaid, or shall upon Search as aforesaid fynde the same Clothe aforesaid to be stretched or strayed, then the same Overseers shall putt the same Defaults unto the Justice at the next Quarter Sessions, and the Names of the Owners or Possessors of such Clothe Keruies Douens Cottons Penytone Kighley Whites [or] Fries, or any other Clothe by what Name or Names they be called, soe found defective: And yf any manner of person or persons, at any tyme after the said twentieth day of September, shall deny withstand or withhold any Clothe Keruies Douens Cottons Penytone Kighley Whites and Fries, or any other Clothe by what Name or Names soever they be called, from the said Overseers or any of them, or will not suffer them to enter into any of the Houses Shoppes Roomes or other Places where any suche Clothe shalbe, that then every such person [and] yf person soe denying or withholdinge shall for the First Offence forfeite and lose Tenne Pounde, and for the Second Offence Twenty Pounde, and for the Thirde Offence, beinge thereof lawfullye convicted by verdict of Twelve Men and two sufficient Witnesses, shall stand upon the Pillorie in the next Market Towne; and yf any of the said persons soe contemned to appeare to be made Overseers as aforesaid, and havinge no reasonable Excuse, refuse to come and take upon hym or them to be Overseers as aforesaid, that then every suche person soe refusinge, and havinge no reasonable Excuse to do so, shall forfeit for every such refusinge Fyre Pounde, the One Halfe thereof to be to your moste Excellent Majestye and your Successors, and the other Halfe to the Justice of the Peace or other Head Officer or Officers by whose commendement he was appointed to appeare to be Overseer, and the same Overseers soe offending to remayne in the Wardes of the Sheriff Bailiffe or other Head Officer, until such tyme as he hath made Payment of the Forfeiture, or otherwise putt in sufficient Bond for the Satisfaction of the same.

IV.
Appointment and Powers of Overseers and Discretion of such Clothe.

1 and G.

2 and G.

3 and G.

V.
Overseers shall and
all Cloths marked
by them.

And to the end that the said Clothes Kervies Douens Cottons Panystons Kighley Whites and Frynes, or any other Clothes by what Name or Names severer they be called, use to be viewed and searched may be the better known; It is therefore enacted that the said Overseers shall fix unto every kinde of the Clothes aforesaid, a Seale of Lead, containing the Length and the Weight of every such Clothe, together with this Word, searched; which Clothe once sealed by the said Overseers, shall not be searched tried or viewed by any other Searcher or Overseer of any other Cityes Boroughs Towns Village Parishes or Hamlet by vertue of his or their said Office or Office; any Thing in this Acte or in any other Statute to the contrary notwithstanding.

VI.
Penalty on
overseers
for default.

And further the said Clothiers and other Inhabitant doe humblye praye that yt maye be likewise enacted, That yf any gown or gown, but such as are appointed assigned and granted by this Acte or their Vnters or Deputies, doe at any tyme after the said twelvthe daye of September counterfeite or sett in, or willinglye and wittinglye take awaye from, say the said Clothes Kervies Douens Cottons Panystons Kighley Whites and Frynes, or any other Clothe by what Name or Names severer they be called, made within the Countie aforesaid, any of the Seales so to be fixed as above is recited, that then every gown soe offendinge shall for the first Offence forfeite and lose Tenne Pound, and for the second Offence, beinge thereof lawfullye convicted by the Verdict of Twelve Men and Two sufficient Witnesses, stand upon the Pillory, and lose and forfeite to your moste excellent Majestye, your Heires and Successors, Twentye Pound.

VII.
Justices of Peace
maye search
for default
of the
Rings, Rings, &c.

And to the end that the said Statute and Lawes aforesaid maye be the more effectuallye executed, and all stretching and falselinge of any the Clothes aforesaid taken awaye, it maye be alsoe enacted that every Justice of the Peace Head Constable or other the Overseers aforesaid, shall have full Power and lawfull authoritie to enter in or upon any the Messuag^e Tenement^e Howse Building^e Land^e or Ground^e of any gown or gown whatsoever, to search for any such Tenement, of what sorte or hynde sever, or any manner of Ropes Ring^e Head^e Wringes or other Engins whatsoever, whereby any Falsehood or Deceite maye be used in or aboute the stretching [or] strayinge of any the sayd Clothes Kervies Douens Cottons Panystons & Kighley Whites, or any other Clothe by what name or names severer they be called, or any of them; And that yf they should fynde any such Tenement of what sorte or hynde sever, or any manner of Ropes Ring^e Head^e Wring^e or Engins, they shall and maye untye the same, in such sorte as they cannot be employede agayne to any such use; and yf any gown or gown with whom any such shall once have been found, shall after that be knowne to have or use any such Tenement of what sorte or hynde sever, or any manner of Ropes Ring^e Head^e Wring^e or Engins, that then they the said Justices Head Constables or Overseers, or any of them within their severall Jurisdictions, shall take and sell the same to the best valewe thereof, and by the Consent of Two Justices of Peace within the same Countie dispose the Money thereof comynge to the Poore of the Parishes where the same shall be so taken; and that upon Complaynte made or Informaⁿ given of any such Tenement, of what sorte or hynde sever, or any manner of Ropes Head Ringe Wringe or Wringe, or any other Engins, to any Justice of Peace, every one of them to whom such Complaynt shall be made or Informaⁿ given, shall within seven dayes nexte ensuynge such Complaynt or Informaⁿ given, repaire to the Place where the same shall be so had and used, and then and there execute this Lawe as aforesaid, upon the payne hereafter in this Point Acte expressed; And that yf any gown or gown shall withstand or resist any such Justice of Peace or Head Officers in or aboute touching or concerning the execution of the premises, every such gown or gown, shall forfeite and suffer as ys before limited, for resistinge the Overseers in the Search; And yf any the Justices or Justice of Peace within the Limit or Boundes of his or thers Commission shall negligente or make defaulte in doynge of any Thinge touching or concerning the due or true execution of this Statute or any Thinge therein comyned, every such Justice of Peace for every such defaulte shall forfeit and lose fyve Poundes.

VIII.
Application
of Forfeitures.

And that all such Forfeitures as shall happen or growe by reason of this Acte, shalbe one third pte thereof to such gown or gown as shall be then Overseers, one other thirde pte to the use of our So^{ve}aigne Ladye the Queenes Majestye, and one other third parte to the use of the Poore, to be employede to the use of the Poore in such sorte as the Justices of Peace, in their Quarter Sessions to be holden nexte after Judgement had or given for the same, shall limit and appoynt.

IX.
Justices of Peace
maye determine
Offences by
Clothes.

And that the said Justices of Peace in their Quarter Sessions shall and maye inquire heare and determine every False or Offence made or done contrarye to this Point Acte, or any Thinge therein comyned, except the Offences comyned and Forfeytured made by the Justices of Peace by Payment Bill or Informaⁿ, and upon Proofs thereof made by the Testimonye of two sufficient Witnesses openly given to the Jury, and thereupon Presentment made by the Jury, to give order for the execution of this Statute, and every Clause therein comyned, and for the Recoverye of the Penalties aforesaid to the uses aforesaid.

X.
Justices of Peace
maye determine
Offences by
Clothes, &c.

And that the Justices of Peace shall and maye inquire heare and determine of any False or Offence made or done by any Justice of Peace contrarye to this Point Acte, in neglecte of thers dutye in or aboute touching or concerning the Execution of this presente Acte, and upon Proofs thereof made by two sufficient Witnessess, and by the Presentment of the Jury, shall and maye give order for Recoverye and Employment of the Penalties and Forfeitures by them admitted and made to the uses aforesaid; and for defaulte of Justice to bee done in manner and forme aforesaid by the Justices of Peace or Justices of Peace, then the one Mayestye of all such Forfeitures to the one half thereof to her Majestye, and the other to hym that will sue for the same by Action of Debt Bill Playnt Informaⁿ in or any of her Majesties Courts or Court^e of Record at Westminster, in which a Wager of Lawe Procession or Excoⁿ shall be admitted or allowed.

(¹) *Provided* nevertheless and be yt further enacted by the authoritie aforesaid, That all and every hynde or Cloth as aforesaid, by what name soever they be called, which shalbe made after the daye aforesaid within the Countie aforesaid, and brought upp to the Citie of London to be sold there, shall be brought into the common Cloth Market Place within the said Citie commonly called Blackwell Hall, to be there searched drye without waytage, and out of Market tyme, by the Searchers of the said Citie; upon payne that every Owner of any such Cloth shall forfeit for every such Cloth not soe brought into the Market Fyve Shilling^s, and upon payne that every Searcher that shall searche at any tyme in the Market tyme, to the disturbance of the Sale of such Cloth in the Market there, shall forfeit for every such Searcher soe made Fyve Pound^s; all which said Forfeitures shall be, the one Moiety to the use of our Sovereign Ladye the Queene Majesty, her Heires and Successors, the other to such person or persons as shall sue for the same by Action of Debt or Informacion, in which Suits noe Wager of Lawe Protection or Encher shall be allowed or allowed.

XL
Northern Cloth
brought to London
shall be searched
drye, at Blackwell
Hall.

CHAPTER XII.

AN ACT for the further continuance & explanation of an Acte for the necessary Reliefe of Souldiers & Mariners, made in the xxxv. yere of the Queene Ma^{tie} Reigne that now ys.

WHERE at the Parliament begun and holden at Westmynster the syneteenth daye of Februarye in the five and [twentie] yere of the Reigne of our moste gracyous So^{veraigne} Ladye the Queene Majesty that now ys, and there continued until the dissolution thereof, being the tenth of April in the same yere, an Acte was made intituled An Acte for the necessary Reliefe of Souldiers and Marryners; Be yt enacted by the Authoritie of this present Parliament, That the former Acte and every Article Clause and Sentence therein conteyned, not altered by this Acte, shalbe continued and endure in force and effecte until the end of the next Parlyament.

By 31 Eliz. c. 4.
for Relief of
Souldiers, &c.
continued.

And Forasmuche as the Assessment and Rate appointed by the said late Acte, upon every severall Parlyshe in every severall Countie, in regarde the number of Souldiers in some Countie ys greater then in some other, seemeth very unneale, and not sufficient to extend to every such poore Souldier a competent Pension, but that hee that hath byn appointed to a Pension of Twentie pounde a yere, hath bene constrained to take fyve pound^s, and soe ratables for lesser Pensions: Be yt therefore declared playnly and enacted by the authoritie of this present Parlyament, That yt shall and maye be lawfull to and for the Justices of Peace at their Quarter Sessions, or the more parte of them their heires, in all Counties and Places within this Realme, within their severall Lynniut^s and Divisions, where they shall thinke that the said former Acte hath not prvided sufficientlye for the Reliefe of the Souldiers and Marryners appointed to be relieved by the said former Act, and not otherwise, to rate and take suche further somes of Money upon every Parlyshe within their severall Lynniut^s, for the better Reliefe of those Souldiers and Marryners as they shall thinke fyt and convenient, soe as no Parlyshe be rated above the somme of Eighte pence nor under the somme of Twove pence weeklye to be payde, and soe as the weeklye Taxacion of the Parishes in any Countie where there shall be above fyfetye Parishes amounte not above the rate of foure pence for every Parlyshe in the same Countie; and that the same sommes soe to be rated and every of them shalbe assessed collected levied payd and distributed by the parson and in manner and forme as ys provided and sett forth by the said former Acte, under suche and the lyke Paynes and Penalties as are appointed or sett forth by the same former Acte; and that all Forfeitures to be forfeited by any Treasurer Collector Constable Churchwarden or other person, for any cause mentioned in the said former Acte or in this Acte, shalbe employed, together with the stocks to be remainynge in any of the said Treasurers hand^s, to the charitable uses exposted and appoynted in and by the said former Statute, and to some other; and that the said Reliefe shalbe given to suche Souldiers and Marryners out of the Countie or Place where they were pressed, not farr forth as the Taxacion limited by this Acte will extend, and yf the whole Taxacion there be alreadye employed accordinge to the true meanings of this Acte, or that they be or shall not be prest men, then in the place where they were borne, or late inhabited by the space of three yeres at his or their Election.

II.
Justices in
Quarter Sessions
may increase the
Rate on Parishes
for Relief of
Souldiers, &c.

Provided always and be yt enacted by the authoritie aforesaid, That yf the said Rate shalbe thought not (¹) sufficient for the Reliefe of suche Souldiers and Marryners as shall be to be relieved within the Citie of London, that then yt shall be lawfull for the Maier Recorder and Aldermen of London, or the more parte of them, to rate and take suche reasonable Taxe Summe it Summes of Money for the said Reliefe as shall be to them thought fit and convenient, soe as such summe and summes of Money soe to be rated, doe not exceed Twove shilling^s weeklye out of any Parlyshe, and soe as in the totall, the same shall not exceede eighte pence weeklye out of every Parlyshe, one with another, within the said Citie and the Liberties thereof.

III.
Increasing Rates
in London.

Be yt further declared and enacted by the authoritie aforesaid, That the Justices of the Peace of every Countie within this Realme, within their severall Lynniut^s, at their Quarter Sessions, or the more parte of them there assembled, shall from henceforth have power and authoritie yearlye to electe anyones or other sufficient men of the [said] Countie, valued by yere in the Subsidie Booke at Tenne pounde in London or Twente

IV.
Justices in Quarter
Sessions shall elect
Treasurers yearlye
for such Rates.

¹ This Proviso is inserted in the Original Act in a separate Schedule.

² inserted G.

³ to be G.

⁴ same G.